

§ 1 Scope / Protective clause / Contract language

(1) These General Terms and Conditions of Trading (hereafter known as: "T&Cs") apply to all contracts concluded via the Online shop: <https://www.badeparadies-schwarzwald.de/de/shop/> (hereafter: "Online Shop") between us, i.e.

Badeparadies Schwarzwald TN GmbH

Am Badeparadies 1,

D-79822 Titisee-Neustadt

Authorized representative and chief executive officer: Edelfried Balle

Tel.: +49 (0) 7651 / 9360 333

Fax: +49 (0) 7651 / 9360 122

Register court: District Court, Freiburg

Register number (Commercial Register): HRB 704491 (hereafter: "we"),

and you as our customer (hereafter: "you"). Unless otherwise agreed, these T&Cs apply regardless of whether you are a consumer or a business.

(2) The conclusion of an agreement with us via our online shop shall be possible only subject to the requirement that you have actively approved our AGB [General Business Terms and Conditions] during the ordering process by ticking the designated field. By means of your consent, you shall hereby declare that you have acknowledged our AGB and agree to their validity.

(3) We shall conclude exclusively agreements via our online shop with adult consumers in accordance with § 13 Civil Code insofar as it concerns the sale of products from the BLUPHORIA brand; moreover, we shall also conclude agreements via our online shop with persons who do not act as consumers. A consumer in accordance with § 13 Civil Code shall be considered to be each natural person who concludes a legal transaction for purposes which cannot be attributed primarily to either his commercial or his independent professional activities. We shall thus limit the orders of products from the BLUPHORIA brand to 15 identical articles per sales transaction. Moreover, we reserve the right to reject your offer to conclude a contractual agreement with us – in whole or in part insofar as, based upon the circumstances of the individual case – for example, based upon the number of total articles ordered during a sales transaction and/or the frequency of sales transaction, justified doubt exists that you are acting as a consumer.

By accepting our AGB during the ordering process, you are hereby declaring to us, in accordance with the law of the country in which you have your customary abode, that you are an adult and are making your order of products from the BLUPHORIA brand as a consumer.

(4) If you should use AGB during the conclusion of an agreement with us which deviate from our AGB, we shall object to their usage. This right of objection shall also then be valid if you have made reference to your AGB in individual correspondence and we have not expressly and specifically objected to them unless your AGB reflect a mandatory statutory provision or we confirm to you, expressly and in writing, that your AGB shall be valid. The unconditional rendering of services or the acceptance of payments by us shall constitute no acknowledgment of your AGB.

(5) The customer information contained in Section II. as well as the revocation instructions that are retrievable on our Internet site and our Data Protection Declaration shall not be considered to be a component of these AGB. They serve the purpose of merely fulfilling our statutorily-prescribed obligations to inform.

§ 2 Conclusion of the contract

(1) The descriptions of the services which you can order via our online shop do not form a legally binding offer, but are instead a request to you to make a such a binding offer for us.

(2) A contract between you and us via our online shop is made as follows:

After you have selected the products which you wish to order via our online shop and entered the required additional information, e.g. the date for reservations or the order quantity in the designated fields, you can add your selection to your shopping basket by clicking on the "PLACE IN THE SHOPPING BASKET" button.

A message will then appear informing you that the items you have chosen have been placed in your basket. By clicking the relevant buttons, you can then decide whether you want to "CONTINUE SHOPPING" or "GO TO CHECKOUT". By clicking on the button "GO TO CHECKOUT" or the basket icon in the top right corner of the online shop web page, you will reach the basket page, where you can check your selection and make changes to the quantities you have ordered. You can also delete your selection by clicking on the waste paper basket icon, which is next to the price information.

By returning to the online shop page you can add further services to the basket and finally check the contents of your basket once again in the manner described above.

The order can then proceed either by clicking on the button "pay with amazon" or the button "GO TO CHECKOUT" in the bottom right section of the basket page. In the first instance, you will be forwarded to the Amazon pay page. If you click

on the "GO TO CHECKOUT" button, you will come to a page where you can decide whether you want to order as a guest or register with your Myparadise user account. By entering your email address and the password you have given when registering your Myparadise user account, followed by clicking on the "Register" button, you will come to the next step in the order. By clicking on the button "CONTINUE AS GUEST" you will also arrive at the next step of the order, without having to register with your Myparadise user account.

In the further stage, you can select your desired method of payment. By clicking on the button "CONTINUE", you will arrive at a further step in the order process where you can enter your personal data and your address (billing and if required a different delivery address).

From this point, by clicking the button "CONTINUE", you will arrive on the "Confirm" page, which contains an overview of your order.

By clicking on the "BACK" button, you can get back to each of the preceding pages, in order to check the information you have given there and correct it if necessary.

By clicking on the "BUY" button, you are hereby sending a binding offer to conclude an agree-ment with us. Up to this point in time, you can check your inputted data and, as required, correct them as well as abort the order process. We shall then promptly confirm the receipt of your binding contractual offer electronically; this confirmation of receipt shall not yet constitute a declaration of acceptance upon our part.

The acceptance of your offer, by means of which a contractual agreement is concluded between you and us, shall be declared by us to you electronically; if we should reject your offer – in whole or in part, we shall likewise send a corresponding declaration electronically. Thus, please ensure that the e-mail address which you are entered during the ordering process or in your My-Paradise user account is accurate and that it is technically able to receive messages. In conjunc-tion with your order, please also check the SPAM folder of your e-mail postal box and the set-tings on your SPAM filter.

(3) Insofar as the delivery and/or supplying of the good and/or service that you have ordered is not possible, we shall refrain from sending a declaration of acceptance. In this context, an agreement shall not be concluded. In this case, we shall promptly notify you and reimburse any counter-performance which has already been received insofar as an agreement has not been concluded; the rights and claims to which you are entitled in accordance with the statutory provisions shall remain unaffected overall.

(4) We reserve the right to not be held responsible for any mistakes and errors regarding the availability of goods, the prices and any other information. We shall promptly correct any mistakes and errors that are discovered in our online shop. Insofar as an agreement has already been concluded between you and us in accordance with the provisions in the aforementioned Para. 2 upon which the aforementioned mistakes and errors may have ramifications, your as well as our rights and claims shall be determined in accordance with the statutory provisions; the provisions regarding the general deliverability as well as the delivery timeframes in the following § 6 Para. 1 shall remain unaffected.

(5) Illustrations and photos in our online shop do not typically exactly reflect the quality features of the goods which we sell and serve merely for the purpose of the presentation of our goods. More detailed and reliable information regarding our goods contain the item descriptions which we have respectively provided. Particularly with regards to the colour scheme, the illustrations and photos in our online shop shall not be binding. In this context, we wish to point out to you that the colours indicated on your screen may deviate from the actual colours.

(6) All information provided in our online shop regarding the characteristics as well as the quality features of the goods shall not be associated with the provision of a guarantee upon our side unless such information has been expressly designated by us to be a "guarantee" and/or has been expressly "guaranteed". The warranty rights to which you are entitled in accordance with the statutory provisions shall remain unaffected overall.

§ 3 MYPARADISE user account / Guest account

(1) In the online shop, you can order goods and services either as a guest or as a registered and signed-in user in our customer "MYPARADISE" portal (hereafter "MYPARADISE"). As a registered user, you are not required to provide your personal data for each order, but rather, when making the respective order, you can register with your e-mail address and the password which you freely select during the registration at MyParadise whereby your personal data shall remain saved in your MyParadise user account; with regards to the updating of your data as well as the deletion of your user account, we refer to the following Para. 4 of this § 3.

(2) Regardless of whether you are ordering goods and services in the online shop as a guest or as a registered and signed-in user in MYPARADISE, we will need the following information from you to implement and carry out your order:

- First name and surname;
- Email address;

- Postal address, consisting of: street, house number, town or city, postcode, country.

Moreover, you can voluntarily save your telephone number for any follow-up questions in conjunction with the implementation and fulfilment of your order.

(3) We use the information you supply exclusively for fulfilling and processing your order(s) in the online shop, for example for arranging deliveries to the address you have given. We also use the information you give us as part of the payment procedure exclusively for processing your payment. We save your data solely for the purposes of meeting our tax and legal commercial obligations.

(4) If you wish to create a MYPARADISE user account, we will need you to provide the data listed in Paragraph 2 as well as a password freely chosen by you. These data shall remain stored in your customer account until you update them or you delete your account. Insofar as the data which you have stored should change, you yourself shall be re-sponsible for their updating. After registration, you can make changes to your personal data as well as delete your account online via your user account.

§ 4 Vouchers

(1) The vouchers which we issue are multi-purpose vouchers. They shall entitle the respective hold-er to buy and/or use all goods and services offered in our online shop and/or in the Badeparadies Schwarzwald [Black Forest Bathing Paradise] at the respectively-valid terms and conditions (particularly the house rules) up to the purchase price paid for the voucher. Vouchers can also be used in order to buy other vouchers.

(2) When redeeming vouchers, goods and services, as described at the time that the voucher was purchased (either on our online shop or on site at Badeparadies Schwarzwald), may be subject to change. We reserve the right to make changes to our range of goods and services at any time.

(3) If goods and/or services are priced lower when redeeming the voucher than they were at the time that the voucher was purchased (hereinafter: "partial redemption"), then the voucher holder will retain the difference as credit. This credit can be used to pay for any goods and/or services available on our online shop or on site at Badeparadies Schwarzwald. Services rendered by us within the context of a partial redemption do not in any way constitute an interim payment, interest payment, security deposit or acknowledgement with the meaning of Section 212 (1) No. 1 of the German Civil Code (BGB).

(4) Your claims to payment of the purchase price for the voucher or the difference in amount, in accordance with the aforementioned Para. 3 shall be based upon the statutory provisions.

(5) In order to redeem a voucher for a purchase in our online shop, the holder of the voucher must enter the code printed on the voucher in the designated field during the last step of the ordering process before clicking the "BUY" button. If the respective voucher holder is to exercise their voucher rights, they must have the voucher on their person and present this to a member of staff at a Badeparadies Schwarzwald checkout when paying for goods and/or services.

§ 5 Partial Deliveries

(1) We shall be entitled to render partial deliveries in a scope which is reasonable for you. This shall be valid particularly for the case of the varying deliverability of individual components of your standard order.

(2) Partial deliveries upon our part shall be associated with no additional shipping or other addition-al costs for you. Something that deviates from this policy shall be valid with regards to shipping costs insofar as you have expressly demanded that we allocate the individual components of your standard order across multiple deliveries; in this case, we shall be entitled to bill you for those shipping costs which you would then have also had to assume if you would have allocated the components from your standard order beforehand to multiple orders that were allocated to the individual deliveries.

§ 6 Delivery Timeframes / Proviso regarding Deliveries from Our Own Sub-Suppliers / Buyer's Right of Rescission

(1) Any information in our online shop regarding general deliverability as well as the anticipated delivery timeframes shall be non-binding; subject to any special agreements in the individual case, such information in our online shop shall constitute no agreement upon our part with you to make delivery within a specific timeframe. Any information regarding general deliverability as well as the anticipated delivery timeframes shall also always be subject to the proviso of prompt delivery by our own sub-suppliers to us. We shall promptly affect the measures required for our own self-delivery with the due care of a prudent businessman.

(2) Insofar as you have not received the goods which you have ordered within 21

working days after the day when you made your order, we shall grant you the right to withdraw from the Agreement without your having to set a notice period for the delivery beforehand which must lapse fruitlessly before you may make termination; if you have made your order on a Saturday, Sunday or legal holiday (Titisee-Neustadt), the aforementioned timeframe of 21 working days shall begin to run on the first working day which immediately follows the day when you made your order. The rights to which you are entitled in accordance with the statutory provisions to withdraw from the Agreement by means of a revocation or for any other reasons to already dissolve the Agreement at an earlier or a later point in time shall not be affected overall by the aforementioned provisions of this Para. 2.

§ 7 Badeparadies Card

(1) The Badeparadies Card is a card that can be topped up with credit in predefined stages. These levels and their respective amounts can be seen in our online shop. You must load a minimum amount onto the Badeparadies Card as credit. You are also free to choose the amount by which you wish to top up, provided that this is done within the levels specified. Credit loaded onto the Badeparadies Card can be used to pay for goods and services on site as well as on our online shop.

(2) Every time you top up your Badeparadies Card, you will receive an additional credit as a bonus on your Badeparadies Card over and above the top-up amount you have selected. The amount you receive as a bonus depends on the amount you have chosen to top up. This bonus amount may only be used to pay for our range of goods and services, either on site or on our online shop. Under no circumstances is it possible to exchange this bonus amount for cash.

(3) The Badeparadies Card is in your name. However, it is transferable.

(4) With partial redemptions the § 4 para. 4 of these T&Cs applies correspondingly to the Badeparadies Card.

§ 8 Booking and rescheduling appointments / Cancelling massage appointments

(1) When booking services at Badeparadies Schwarzwald using our online shop, you must select the date on which you would like your chosen service to take place and, where required, a specific time (hereinafter: "service time"). At a minimum, bookings will grant you admission to Badeparadies Schwarzwald on a specific day; and this includes day tickets and tickets which are only valid for a

specific number of hours. In addition to admission to Badeparadies Schwarzwald, bookings may extend to further services (hereinafter: "additional services"). Additional services include, in particular, sunbeds and massages.

(2) Bookings are binding. However, you may reschedule appointments in accordance with the following provisions up to 24 hours before the intended start time i.e.: to change the day of your appointment or the start time. The intended start time in the meaning of Paragraph 2 is the point in time at which you are able to attend Badeparadies Schwarzwald for your appointment. You are free to reschedule any services that you wish to book as you see fit. It is only possible to reschedule appointments online. Click on the link entitled "Reschedule" on your booking confirmation to reschedule appointments. The value of your original appointment will be offset against the value of the rescheduled appointment; please refer to the special provisions regarding massages in Paragraph 4. If the value of your original appointment exceeds the value of your rescheduled appointment, you will receive a voucher for the difference; the provisions outlined in § 4 of these General Terms & Conditions apply to this voucher. If the value of your rescheduled appointment exceeds the value of your original appointment, you must pay us the difference.

(3) Please note that, for administrative reasons, rescheduling the service time only grants you admission to Badeparadies Schwarzwald. With the exception of massages, all additional services booked by you will be automatically cancelled when you reschedule; the special provisions outlined in Paragraph 4 (below) apply to massages. If your original appointment included additional services, you are still free to rebook these (should you still wish to) in the "Additional services" section of our online form. Please note that you are not obliged to reschedule additional services; and the special provisions regarding massages outlined in Paragraph 4 (below) remain unaffected.

(4) You may cancel your massage appointment if your massage is included as an additional service, and you do not wish to proceed with the massage. Massage appointments are not automatically cancelled when you reschedule appointments. It is only possible to cancel massage appointments provided that you inform us of the cancellation by e-mail (info@badeparadies-schwarzwald.de), at least 48 hours before the service time, making sure to quote your booking reference in the e-mail. You may also cancel any massages included as an additional service within the aforementioned notice period provided that you do not intend to reschedule your appointment in accordance with Paragraph 2. We will refund you the full cost of the massage provided that you give us more than 48 hours' notice of the cancellation. However, should you give us fewer than 48 hours' notice of the cancellation, any claims raised by either party will be subject to statutory provisions. We will process the refund using the same payment

method as you used to process the original transaction, unless we have expressly agreed to an alternative arrangement with you.

(5) In the event of rebookings in accordance with the above paragraph 2, we will charge you a rebooking fee of € 10.00 per rebooking. You are entitled to prove that we have incurred no or less damage. We are entitled to prove that we have incurred a higher loss.

(6) You and/or the person for whom the booking has been made accept all risks of use with regard to the booked service. For example, you accept that you are not entitled to demand a refund of the fee should you be unable to use a booked sunbed in the outdoor area due to poor weather.

(7) You must present your booking confirmation to staff in order to access booked services.

§ 9 Area of delivery / Terms of delivery

(1) We deliver exclusively within Germany and to Belgium, France, Luxembourg, Austria, the Netherlands and Switzerland.

(2) In accordance with the provisions outlined in Paragraphs 3 to 6, our delivery methods – depending on the goods to be delivered – include postal or parcel service delivery and electronic delivery, in which we send the delivery item to your “print at home” e-mail address which you provided when making the booking or registering for your MyParadise user account (hereinafter: “Print@Home”).

(3) As soon as you have completed the ordering process and by clicking on the "BUY" button, you have hereby sent us a binding offer to conclude an agreement with us (cf. § 2 Para. 2 of these AGB) and the delivery method selected by you shall be considered binding; a belated changing of the delivery method shall not be possible.

(4) Print@Home delivery involves us sending you an accessible PDF document containing the delivery item.. For deliveries for Print@Home you are yourself responsible for the correctness and the technical reception facility of the email inbox that you have given us in the order process described in § 2 para. 2 of these T&Cs or in your MYPARADISE user account, as well as for the printout of your order.

(5) If with your order you are acting as a business person, legal entity under public law or a special fund under public law, the deliveries and the shipping are at your risk.

§ 10 Prices and Payment Terms and Conditions / Invoices / Delivery Notes

(1) The prices given in the relevant offers plus the shipping costs represent total prices. They contain all the price components including all applicable taxes in the relevant legally determined amount.

(2) The shipping costs arising are not included in the purchase price and will be shown separately in the course of the order process. Shipping costs are to be borne by you in addition to purchase costs, insofar as we have not agreed to shipping cost free delivery for you. The amount of the shipping costs can be seen via a correspondingly marked button on our website or in the relevant offer.

(3) You are responsible for costs arising because the delivery is to a country that is not a member of the European Union, in particular customs dues or money transfer fees (transfer or exchange rate fees from credit institutes). Costs arising from money transfer are also to be paid by you if the delivery is to an EU Member State, but you have initiated payment outside the European Union.

(4) For each order which you make, you shall receive an invoice from us which fulfils the statutory requirements. We shall, regardless of the selected delivery method, send the invoice to you exclusively electronically to the e-mail address which you provided for the order or in your My-Paradise user account.

(5) For each order, you shall receive a delivery note from us. For Print@Home deliveries, we will only send the electronic delivery note to the e-mail address that you provided when placing your order or when registering for your MyParadise user account. For all other deliveries, we shall enclose a paper delivery note with your postal or package shipment.

§ 11 Promo codes

(1) Promo codes are codes that you can claim when placing an order on our online shop, which allow you to buy certain products at cheaper prices.

(2) Promo codes have a limited validity and, where applicable, your subtotal must exceed a minimum amount for the promotion to be applied. This minimum amount is determined by the respective promo code or promotion conditions.

(3) It is not possible to combine promotional codes with other promotions. Promotional prices are valid as a discount promotion. It is only possible to redeem one promotional code per order.

(4) The above paragraphs 1 to 3 do not apply to codes on multi-purpose vouchers pursuant to § 4 of these GTC. Multi-purpose vouchers can be combined with other multi-purpose vouchers as well as with discount promotions.

§ 12 Right of reservation and offsetting

(1) You can only exercise your right of offsetting if your claim against us originates in the same contract relationship as our claim.

(2) You are entitled to offsetting or a right of reservation only if your claim against us is undisputed or has been legally established. This does not apply to claims arising from the exercise of your right to cancellation or warranty for defects rights or from the §§ 812-822 BGB (German Civil Code) and also does not apply to the right to refuse performance according to § 320 BGB.

§ 13 Usage rights

(1) We reserve our property rights, in particular copyright, to the texts, photographs, graphics, animations, videos, logos, images, drawings, motifs, music and other representations in the online shop, on the vouchers or in other publications. Your making these accessible to third parties, public reproduction and duplication requires our express agreement in writing. Unaffected by the above is your right to transfer vouchers you have acquired in the online shop to third parties.

(2) Copyright credits plus other features identifying the holder of the rights must not be removed or changed.

§ 14 Warranty for defects rights / limitation of liability

(1) Insofar as the goods which were purchased in our online shop and delivered are discovered to be flawed and/or incomplete, you shall, in accordance with the statutory provisions, be entitled to demand fulfilment and/or subsequent fulfilment, to withdraw from the Agreement that has been concluded between you and us or to reduce the purchase price. Any claims for damages you raise will also be subject to statutory provisions, unless otherwise provided for in Paragraphs 2 to 5 (below).

(2) We are liable for willful intent and gross negligence. We are also liable for gross violation of duties that are necessary in the first place to enable the proper performance of the contract between you and us, which is why their violation endangers the achievement of the purpose of the contract, and on the compliance with which you can regularly rely (hereafter: "essential contractual duties"). If essential contractual duties are violated, we are liable only for predictable damages typical of the contract.

(3) We are not liable for slightly negligent infringement of contractual duties that are not essential contractual duties in the sense of para. 1 of this § 12.

(4) The above exclusions of liability do not apply to critical or physical injury or to impairment of health. Liability according to the Produkthaftungsgesetz (German Product Liability Act) also remains unaffected.

(5) According to the present status of technology, data communication via the internet cannot be guaranteed to be free of error and/or available at any time. To this extent, we are not liable for the constant, error-free and uninterrupted availability of our online trading system.

§ 13 Final provisions

(1) The contractual relationship existing between you and us is subject to the laws of the Federal Republic of Germany, excluding the UN Convention on Contracts for the International Sale of Goods (CISG), if

- a) Your normal place of residence is in Germany or
- b) Your normal place of residence is in a country that is not a member of the European Union.

(2) In the event that your normal place of residence is in a Member State of the European Union, the contractual relationship existing between you and us is also subject to the laws of the Federal Republic of Germany, excluding the UN Convention on Contracts for the International Sale of Goods (CISG). However, the mandatory consumer protection regulations in the sense of Art. 6 para. 2 page 2 of Regulation (EG) 593/2008 of the country of your normal place of residence remain unaffected by this choice of legislation, if the laws of this country according to Art. 6 para. 1 of the Regulation (EG) 593/2008 could not be applied without the choice of legislation mentioned above, i.e.

- a) If you are a natural person and have concluded the contract with us for a purpose that cannot be assigned to your professional or commercial activity and
- b) We are exercising our commercial activity in the country in which you have

your normal place of residence or

c) We are focusing our commercial activity on this country.

(3) If your domicile or normal place of residence was in Germany on conclusion of this contract and at the time we file a suit you have moved it out of Germany or your normal place of residence is unknown at that time, the place of jurisdiction for all disputes arising from and in connection with the contractual relationship existing between us shall be the headquarters of our company in Titisee-Neustadt.

(4) If you have made your order as a business person, legal entity under public law or special fund under public law, the place of performance for all services arising from the business relationships with us and also the sole place of jurisdiction shall be our headquarters in Titisee-Neustadt. Also, our authorization to refer matters to a court at another place of jurisdiction remains unaffected by the above.

(5) We refer you to the fact that you, if you have placed your order in our online shop as a consumer, will along with official legal recourse also have the option of out of court settlement of disputes in accordance with the Regulation (EU) No. 524/2013.

The competent body for resolving disputes according to the VSBG (German Consumer Dispute Settlement Act) is the Universalschlichtungsstelle des Zentrums für Schlichtung e.V. (German Universal Arbitration Office of the Center for Arbitration), Straßburger Straße 8, D-77694 Kehl am Rhein. www.verbraucher-schlichter.de

Our email address is: [info@badeparadies-schwarzwald.de]. In accordance with § 36 VSBG, we also point out that we are not obliged to take part in an out of court dispute settlement process at a consumer arbitration office. We are not prepared to take part in a dispute settlement process at a consumer arbitration office.

(6) If one of the provisions of the T&Cs or a contract of which they form a part should prove to be or become invalid as a whole or in part, or if the contract existing between you and us or these T&Cs should contain a gap in regulations, this shall not affect the legal validity of the remaining provisions. You and we will replace the invalid provision with one where the meaning and purpose come closest economically and in a legally valid manner to the invalid provision. The same also applies to any gaps.

II. CUSTOMER INFORMATION

The following customer information does not form part of our T&Cs. It serves for the fulfillment of our legal duties of information.

1. Identity of vendor

Badeparadies Schwarzwald TN GmbH
Am Badeparadies 1,
D-79822 Titisee-Neustadt
Germany
Tel.: +49 (0) 7651 / 9360 333
Fax: +49 (0) 7651 / 9360 122
E-Mail:info@badeparadies-schwarzwald.de

2. Essential qualities of the goods and services offered in our online shop

To obtain details of the essential features of the goods and services offered in the online shop and the period of validity of time-limited offers, please consult the individual product descriptions in our online shop and/or the information on the final page of the order process described in § 2 para. 2 of our T&Cs (Part I).

3. Information on the conclusion of the contract

The technical steps leading to the conclusion of the contract between you and us, the conclusion of the contract itself and the options for amendments are set out in detail in § 2 para. 2 of our T&Cs (Part I).

4. Note on correction

On the basket page, you can check your selection and make changes to the quantities you have ordered. You can also delete your selection by clicking on the waste paper basket icon, which is next to the price information. On the final page of the order process described in § 2 para. 2 of our T&Cs (Part I), you will receive an overview of your information and input during the order process, in particular on order quantity, object of the order, value of the order, delivery and billing address. By clicking on the "BACK" button, you can get back to each of the preceding pages, in order to check the information you have given there and correct it if necessary. If you want to cancel the order process, you can close the browser window or the relevant tab. Otherwise, clicking on the "PURCHASE" button will make your order binding.

3. Information on the conclusion of the contract

The technical steps leading to the conclusion of the contract between you and us, the conclusion of the contract itself and the possibilities for correction are set out in detail in § 2 Para. 2 of our General Terms and Conditions (Section I.).

4. correction notice

On the shopping basket page, you can check all the data you have entered and change it if necessary. You can also check your selection and make changes to the order quantity. You can also delete your selection by clicking on the bin symbol next to the price. On the last page of the order process described in § 2 para. 2 of our GTC (section I.) you will receive an overview of your details and entries during the order process, in particular the order quantity, the order item, the order value and the delivery and billing address. By clicking on the "BACK" button, you can return to the respective upstream ordering steps in order to check your details there and correct them if necessary. If you want to cancel the order process, you can close the browser window or the corresponding tab. Otherwise, by clicking the "BUY" button your declaration becomes binding.

5. Language of the contract

Our online shop is only available in the German language. A contract conclusion via the online shop is only possible in German.

6. Prices and payment terms

6.1. The prices listed in the relevant offers plus the shipping costs represent total prices. They contain all the price components including all applicable taxes.

6.2. The shipping costs arising are not included in the purchase price. These can be viewed via a correspondingly marked button on our webpage or in the relevant offer. The shipping costs are shown separately in the course of the order process and are to be borne by you in addition to purchase costs, insofar as we have not agreed to shipping cost free delivery for you.

6.3. If the delivery is to countries outside the European Union, we may be charged further costs for which we are not responsible, such as for example customs dues, taxes or money transfer fees (transfer or exchange rate fees from credit institutes); you are responsible for paying these fees. Costs arising from money transfer are also to be paid by you in cases where the delivery is to an EU Member State, but you have initiated payment outside the European Union.

6.4. The methods of payment available to you are shown under a correspondingly marked button on our web pages or in the relevant offer.

6.5. Unless different information is given for the individual types of payment, claims for payment arising from the concluded contract are to be paid immediately.

6.6 For each order which you make, you shall receive an invoice from us which satisfies the statutory requirements. We shall send you the invoice exclusively electronically to the e-mail address which you provided for the order or in your MyParadise user account.

7. Terms of delivery

7.1. You can find the terms of delivery, the delivery date and also any restrictions on delivery under a correspondingly marked button on our website or in the relevant offer.

7.2. If you are a consumer, the legal regulations mean that the risk of accidental loss and accidental deterioration of the sold object during dispatch is transferred to you only on the handover of the goods, regardless of whether the dispatch was insured or not insured. This does not apply if you independently commission a transport company not named by us or use another specified person to carry out the dispatch.

8. Storing the text of the contract

The complete text of the contract is not stored by us. Before sending your order, you can use the browser's print function to print out your contract data or save them electronically. After we have received your order, we will send the order data, the legally required information for long-distance sales contracts and the General Terms and Conditions of Trading back to you by email.

9. Legal right to warranty for defects when buying goods in our online shop

If the goods purchased in and delivered from our online shop should be defective, you are entitled, within the framework of the legal conditions, to demand supplementary performance, to withdraw from the contract existing between you and us, or to reduce the purchase price. Your claims to damage compensation shall likewise be based upon the statutory provisions unless something else has been prescribed in the provisions in § 14 Paras. 2 – 5 of our AGB.

10. No right to cancellation for reservations made via our online shop

10. No right of withdrawal for bookings made using our online shop

Consumers do not have the right of withdrawal when making bookings using our online shop. The legal basis for this is Section 312g (2) No. 9 BGB.

11. No Right of Rescission for the Removal of Seals

In the case of agreements for the delivery of sealed goods which, owing to reasons of health protection or hygiene, are not suitable for return, you shall be entitled to no right of rescission in accordance with § 312g Para. 2 No. 3 Civil Code if the seal was removed after delivery was made.

12. Codes of conduct

We are subject to the Purchaser Seal Quality Criteria of the Händlerbund Management AG and with the above also to the Ecommerce Europe Trustmark Code of Conduct. This can be viewed at:

<https://www.haendlerbund.de/images/content/kaeufersiegel/kaeufersiegel-qualitatskriterien.pdf>

and

<https://www.ecommercetrustmark.eu/the-code-of-conduct/>

13. Alternative dispute settlement

We would like to point out that if you have placed an order via our online shop as a consumer, you also have the option of an out-of-court settlement of disputes in accordance with Regulation (EU) No. 524/2013 in addition to the ordinary legal process.

Our e-mail address is: info@badeparadies-schwarzwald.de. In accordance with § 36 VSBG, we would like to point out that we are not obliged to participate in an out-of-court dispute resolution procedure before a consumer arbitration board.

We are not willing to participate in dispute resolution proceedings before consumer arbitration boards.

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